



Mathew Tyler

550 Vallombrosa Ave # 6471

Chico, CA 95927

+1-262-757-8802

hi@tylerpresident.com

Plaintiff, *Pro per pro se*

Dated: March 27, 2025

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

MATHEW TYLER,

Plaintiff,

v.

118TH US CONGRESS, et al.,

Defendants.

_____/

Case No. 2:2025cv00404

**NOTICE OF PLAINTIFF'S PRETRIAL MOTION OBJECTING TO REMOVAL
OF ANY DEFENDANTS FROM RICO ACTION**

MEMORANDUM OF POINTS AND AUTHORITIES

I. INTRODUCTION

COMES NOW Plaintiff Mathew Tyler ("Plaintiff"), appearing pro per pro se, pursuant to the Federal Rules of Civil Procedure and the Local Rules of the United States District Court for the Eastern District of California, respectfully submits this Pretrial Motion objecting to the removal of any Defendants from this civil RICO action.

This case involves claims arising under the Racketeer Influenced and Corrupt Organizations Act ("RICO"), 18 U.S.C. §§ 1961-1968. Plaintiff, as a crime victim as defined by 18 U.S.C. § 3771 and California Constitution Article 1 § 28, and as codified by 34 U.S.C. § 20141(e)(2) and California Constitution Article 1 § 28(e), asserts that all Defendants named in this action are properly joined based on their participation in a criminal enterprise. The removal of any Defendant would prejudice Plaintiff's rights as a crime victim and undermine the purpose of RICO, which is designed to address organized criminal activity involving multiple participants.

II. LEGAL STANDARD

Under Federal Rule of Civil Procedure 21, "the court may at any time, on just terms, add or drop a party." However, this discretion must be balanced against the plaintiff's rights, particularly in RICO actions where the enterprise nature of the alleged conduct is central to the case.

The Court must construe the alleged facts in the light most favorable to the plaintiff. See *Scheuer v. Rhodes*, 416 U.S. 232, 236 (1974); see also *Hosp. Bldg. Co. v. Rex Hosp. Trustees*, 425 U.S. 738, 740 (1976); *Barnett v. Centoni*, 31 F.3d 813, 816 (9th Cir. 1994)

(per curiam). All ambiguities or doubts must also be resolved in the plaintiff's favor. See *Jenkins v. McKeithen*, 395 U.S. 411, 421 (1969); *Dunham v. Mohyuddin*, 2:23-CV-2757-DMC-P, (E.D. Cal. Jan. 29, 2025).

III. ARGUMENT

A. All Defendants Are Properly Joined Under RICO's Enterprise Theory

RICO was specifically designed to address the organization of individuals who collaborate in a criminal enterprise. Under 18 U.S.C. § 1962, it is unlawful for any person associated with an enterprise to conduct or participate in the conduct of such enterprise's affairs through a pattern of racketeering activity.

The Supreme Court has consistently recognized that RICO was "an aggressive initiative to supplement old remedies and develop new methods for fighting crime." *Sedima, S.P.R.L. v. Imrex Co.*, 473 U.S. 479, 498 (1985). In *Boyle v. United States*, 556 U.S. 938, 948 (2009), the Court affirmed that RICO's definition of "enterprise" has a "wide reach" and rejected the argument that an association-in-fact enterprise must have "an ascertainable structure beyond that inherent in the pattern of racketeering activity."

Under the principle established in *Salinas v. United States*, 522 U.S. 52, 65 (1997), a defendant who agrees to participate in a RICO conspiracy can be liable even if they do not personally commit or agree to commit the predicate acts. The Court held that "[a] conspiracy may exist even if a conspirator does not agree to commit or facilitate each and every part of the substantive offense."

B. Vicarious Liability Applies to All Defendants in a RICO Enterprise

The principle of vicarious liability is fundamental to RICO actions. As the Court stated in *Pinkerton v. United States*, 328 U.S. 640, 647-48 (1946), a conspirator may be held liable for the reasonably foreseeable acts of co-conspirators in furtherance of the conspiracy.

This principle has been consistently applied to RICO cases.

In *United States v. Berger*, 224 F.3d 107, 120 (2d Cir. 2000), the court affirmed that "a defendant may be liable for conspiracy even if he was incapable of committing the substantive offense." Similarly, in *Brady v. Dairy Fresh Products Co.*, 974 F.2d 1149, 1154 (9th Cir. 1992), the Ninth Circuit held that "[l]iability under § 1962(c) may be imposed on those who are merely 'associated with' an enterprise."

The Ninth Circuit has further clarified in *River City Markets, Inc. v. Fleming Foods West, Inc.*, 960 F.2d 1458, 1465 (9th Cir. 1992), that "a business that is a beneficiary of a pattern of racketeering activity falls within the coverage of RICO's substantive provisions."

C. Plaintiff's Rights as a Crime Victim Support Maintaining All Defendants

Plaintiff is entitled to the full protection of his rights as a crime victim under federal and state law. The Crime Victims' Rights Act, 18 U.S.C. § 3771, guarantees victims the right to be treated with fairness and respect, the right to proceedings free from unreasonable delay, and the right to full and timely restitution.

Similarly, the California Constitution Article 1 § 28(b) provides that victims have the right to seek and secure restitution from the persons convicted of the crimes causing the losses they suffer. Under California law, a "victim" is defined broadly in Article 1 § 28(e)

1 to include persons who suffer direct or threatened physical, psychological, or financial
2 harm as a result of a crime.

3 Allowing any Defendant to be removed from this action would prejudice Plaintiff's rights
4 by potentially limiting the scope of restitution and accountability. As the Ninth Circuit
5 recognized in *United States v. De La Fuente*, 353 F.3d 766, 771 (9th Cir. 2003), "the
6 district court's discretion in protecting a defendant's rights must be balanced against the
7 need to protect the rights of crime victims."

8 **D. Joinder Is Proper Under Federal Rules of Civil Procedure**

9 Federal Rule of Civil Procedure 20(a)(2) permits the joinder of defendants if: (A) any
10 right to relief is asserted against them jointly, severally, or in the alternative with respect
11 to or arising out of the same transaction, occurrence, or series of transactions or
12 occurrences; and (B) any question of law or fact common to all defendants will arise in
13 the action.

14 In RICO cases, courts have consistently found that members of the same alleged
15 enterprise satisfy these requirements. In *Gagan v. American Cablevision, Inc.*, 77 F.3d
16 951, 964 (7th Cir. 1996), the court held that "all who aided, abetted, counseled,
17 commanded, induced, or procured the commission of a predicate act are responsible for
18 the act."

19 The Ninth Circuit has similarly held in *Forsyth v. Humana, Inc.*, 114 F.3d 1467, 1481 (9th
20 Cir. 1997), overruled on other grounds by *Lacey v. Maricopa County*, 693 F.3d 896 (9th
21 Cir. 2012), that RICO claims properly join defendants who participated in the same
22 pattern of racketeering activity, even if their individual roles differed.

1 **IV. CONCLUSION**

2 For the foregoing reasons, Plaintiff respectfully requests that this Court deny any motion
3 or request to remove any Defendants from this action. The nature of RICO and the
4 principles of conspiracy and enterprise liability support maintaining all Defendants in this
5 case. Furthermore, Plaintiff's rights as a crime victim would be prejudiced by the removal
6 of any Defendant from this action.

7 Dated: March 27, 2025

8 **Respectfully submitted,**

9

10

11



12 **Mathew Tyler**

13 550 Vallombrosa Ave # 6471

14 Chico, CA 95927

15 +1-262-757-8802

16 hi@tylerpresident.com

17 **Plaintiff, Pro per pro se**

18

1 **[PROPOSED] ORDER**

2 Having considered Plaintiff's Motion Objecting to Removal of Any Defendants from
3 RICO Action, and good cause appearing therefor,

4 IT IS HEREBY ORDERED that:

5 1. Plaintiff's Motion is GRANTED.

6 2. All Defendants shall remain joined in this action, subject to future determinations
7 regarding the merits of Plaintiff's claims.

8 Dated: _____

9

10

1 **VERIFICATION**

2 I, Mathew Tyler, declare under penalty of perjury under the laws of the State of California
3 that the foregoing is true and correct to the best of my knowledge and belief.

4
5 Executed on 03/27/2025, at Butte County, California.



8 **Mathew Tyler**

9 550 Vallombrosa Ave # 6471

10 Chico, CA 95927

11 +1-262-757-8802

12 hi@tylerpresident.com

13 **Plaintiff, Pro per pro se**